10 — General partnership terms

Français (version de référence) : ../fr/10-contrat-partenariat.md

Header	
Publisher	Nhill Solution, Kinshasa (Democratic Republic of the Congo)
Version	3.0.0 — 28 October 2026
Status	written without review by a lawyer or a tax adviser; recommended review points: V-02, V-03, V-11 and status of the partner (business introducer, commercial agent) (00 § 5). The French version is the reference text
Assumptions	H-10, H-11, H-18 (00 § 2)
Documents	1. the **letter of agreement** sent to the Partner and accepted by it (form of partnership, territory, remuneration, term); 2. these terms. The letter prevails in case of conflict

1. Parties

These terms bind **Nhill Solution**, with its head office in Kinshasa (Democratic Republic of the Congo), hereinafter the “Publisher”, and the person or organisation identified in the letter of agreement, hereinafter the “Partner”.

2. Forms of partnership

The letter of agreement retains one or more of the following forms:

- **Referral**: the Partner introduces Nhill to businesses in its network; if they become customers, it receives the commission set in the letter of agreement;
- **Installation and support**: the Partner installs Nhill, imports the data and provides first-level support, paid by its customers or by the Publisher according to the letter of agreement;
- **Training**: the Partner trains users on Nhill with the Publisher’s materials;
- **Support of entrepreneurs**: the Partner (incubator, professional association, SME support organisation) offers Nhill to the businesses it supports, for example through the assisted free trial;
- **Reference user**: a customer business agrees to receive other entrepreneurs to share its experience, without remuneration unless stated otherwise.

3. Independence

The Partner acts as an independent professional. It is neither an employee nor an agent of the Publisher, cannot bind it and signs nothing in its name. It bears its own costs, unless agreed in writing.

4. Referred customer

A business is deemed referred by the Partner if the Partner reported it in writing to the Publisher (e-mail to info@nhill.online) **before** any direct contact between that business and the Publisher, and if the business then accepts a subscription proposal within the period set in the letter of agreement. In case of double reporting, the first written report prevails.

5. Remuneration

5.1 The commission is calculated on the amounts **actually collected** by the Publisher for the referred customer's subscription, excluding taxes, at the rate, over the period and on the payment terms set in the letter of agreement.

5.2 No commission is due on an amount refunded or unpaid. The Publisher gives the Partner a statement with each commission payment (customers concerned, amounts collected). Any tax withholding is applied as required by law.

6. Partner's undertakings

Present Nhill fairly, **without promising what the software does not do** (in particular: Nhill is not an invoicing device approved or standardised by a tax administration; no figure on results is guaranteed); use the materials provided or approved by the Publisher; pass on to the Publisher only contacts who agreed to be contacted (document 16); never ask a customer for a password.

7. Publisher's undertakings

Provide presentation materials and a demo access, train the Partner on Nhill, give accurate statements, answer the Partner's questions.

8. Name and brand

The Partner may present itself as a "Nhill partner" during the partnership. It registers no domain name or social network account containing "Nhill". The Publisher announces the partnership publicly only with the Partner's agreement.

9. Confidentiality and personal data

Each party keeps the other's non-public information confidential (document 11) and remains responsible for the personal data it collects.

10. Term and end

The partnership lasts for the period set in the letter of agreement. Either party may end it in writing with the notice set in the letter of agreement, and without notice in case of a serious breach that remains unremedied after a written formal notice. Commissions earned before the end remain due.

11. Governing law

Law of the Democratic Republic of the Congo, including the OHADA Uniform Acts; search for an amicable solution, then the competent courts of Kinshasa.

Acceptance

The Partner accepts these terms and the letter of agreement by signing below or by an e-mail of acceptance.

For Nhill Solution	For the Partner
Name and position:	Name, position and organisation:
Date:	Date:
Signature:	Signature: